

Line 7

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

BERKSHIRE HATHAWAY HOMESTATE
COMPANIES,

Plaintiffs,

v.

NIKNAM NICKERAVISH, an individual,
NIK'S AIRCRAFT, LLC, and DOES 1 to 20,
inclusive,

Defendants.

Case No. 24CV443609

**ORDER DENYING DEFENDANT NIK'S
AIRCRAFT LLC'S MOTION TO COMPEL
PLAINTIFF'S FURTHER RESPONSES
TO REQUESTS FOR ADMISSION (SET
ONE), FORM INTERROGATORY NOS.
1.1 AND 17.1, AND REQUESTS FOR
PRODUCTION OF DOCUMENTS (SET
ONE)**

Defendant Nik's Aircraft, LLC motion to compel Plaintiff Berkshire Hathaway Homestead Companies to provide verified responses, without objections, to Nik's Aircraft, LLC's Request for Admissions (Set One), Form Interrogatories 1.1 and 17.1 (Set Two), and Request for Production of Documents (Set One) and for \$7,551 in sanctions came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

Defendant Nik's Aircraft serviced a plane, and the plane crashed just minutes after takeoff. Berkshire Hathaway seeks reimbursement for worker's compensation payments it made to the pilot who was severely injured. Berkshire Hathaway claims Defendants were responsible for using fuel during testing and using that fuel led to the crash. Defendants assert the crash was entirely due to pilot error. However, the dispute before this Court on this motion relates only to discovery.

Defendants served requests for admissions (set one), form interrogatories (set two), and

requests for production (set one) on Berkshire Hathaway on January 14, 2025. After receiving extensions, Berkshire Hathaway served responses with a verifications “pending signatures” on March 10, 2025. With a response to Defendants’ March 14, 2025 meet and confer letter, Berkshire Hathaway served further responses to these discovery requests, each verified by a Berkshire Hathaway senior paralegal.

Defendants move to compel because (1) Berkshire Hathaway’s original responses to these discovery requests were served without a verification and (2) the blank verification form that came with the discovery responses indicated a Berkshire Hathaway senior paralegal would sign the verification in part on information and belief. Defendants make reference to Plaintiff’s statement regarding “substantial compliance” and to Plaintiff’s objections, however, Defendants do not identify any missing information. Nor do Defendants address the plain fact that Plaintiff produced verifications shortly after it served its initial responses. Defendants’ reply is silent on that issue, instead focusing on the declarant.

First, the fact that Berkshire Hathaway filed its opposition late does not mean the Court should not consider it. The Court has discretion to consider late filed papers. (*Gonzalez v. Santa Clara County Dep’t of Social Servs.* (2017) 9 Cal.App.5th 162, 168.) And, where a party provides a substantive response to a late filing, the party waives all defects in service. (*Moofly Productions, LLC v. Favila* (2020) 46 Cal. App. 5th 1, 10.) Defendants filed a reply brief and declaration. The Court will consider the late opposition. Although the parties are cautioned to comply with all applicable rules.¹

Next, read as a whole, the Court is perplexed as to what Defendants are—or ever were—asking for the Court to order here. Plaintiff did produce verifications for this discovery even before Defendants filed this motion. And Plaintiff offered to meet and confer and even to locate another person to verify the responses if that is what Defendants were concerned about. It does not appear that Defendants ever took Plaintiff up on this offer.

¹ Defendants’ apology to the Court for filing a single motion to compel is appreciated but unnecessary. It is actually the California Rules of Court and Code of Civil Procedure that require separate motions. Where the issues are clear, this Court prefers the efficiency of a single motion.

Defendants' reply does not address Plaintiff's argument that corporate entities are treated differently than individuals when it comes to verifying responses. (Plaintiff's Opp. at 5-6.) If Defendants want to know the source of the information contained in Plaintiff's responses, Code of Civil Procedure sections 2030.250(b), 2031.250(b), and 2033.240(b) provide a method for doing that: "[i]f the officer or agent signing the response on behalf of that party is an attorney acting in the capacity for a party, the party waives any lawyer-client privilege and any protection for work product under Chapter 4 (commencing with Section 2018.010) during any subsequent discovery from that attorney concerning the identity of sources of the information contained in the response."

Defendants also fail to articulate anything that is missing from Plaintiff's responses. If Defendants are frustrated that they did not get information from the pilot or the pilot's employer, that is because neither the pilot nor the pilot's employer are parties to this case. To obtain information from the pilot and the pilot's employer, Defendants must subpoena those third parties. (*Unzipped Apparel, LLC v. Bader* (2007), 156 Cal.App.4th 123, 124.)

In sum, the Court finds this motion was made without substantial justification and adequate meet and confer. Code of Civil Procedure section 2023.020 states: "the court *shall* impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney's fees, incurred by anyone as result of that conduct." (Emphasis added; see also *Moore v. Mercer* (2016) 4 Cal.App.5th 424, 448 (failure to participate in meet and confer process in good faith is independent discovery abuse for which sanctions are authorized by statute).) This monetary sanction is mandatory regardless of how the court rules on the offending party's motion. (Code Civ. Proc. §2023.020.) However, while Plaintiff asks for \$3,475 in attorneys' fees and costs for opposing this motion, Plaintiff fails to submit an attorney declaration or other evidence to support this amount. Thus, the Court cannot award monetary sanctions against Defendants.

Defendants' motion to compel and for sanctions is DENIED.

IT IS SO ORDERED.

Date: _____

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 8

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

TECH KY, an individual,

Plaintiff,

v.

24 HOUR FITNESS USA, LLC, a California
Limited Liability Company; JESUS
RAMIREZ HERNANDEZ, an individual; and
DOES 1 to 100, inclusive,

Defendants.

Case No. 24CV444162

**ORDER GRANTING MOTION TO
COMPEL**

Plaintiff TECH KY's motion to compel Defendant Jesus Ramirez Hernandez to serve full and complete verified answers, without objection, to Plaintiff's form interrogatories (set one) and for \$1,500 in sanctions came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025, 2025.

Plaintiff served form interrogatories (set one) on Defendant on February 21, 2025. To date, Defendant has served no responses. In fact, Defendant did not oppose this motion despite having been served by U.S. mail with the notice of motion and motion on July 22, 2025. "[T]he failure to file an opposition creates an inference that the motion [] is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.)